EMIDS TECHNOLOGIES / KNOWLEDGE BASE

POSH — Internal Committee Operating Procedure (HR)

The statutory working procedure for the Internal Committee: constitution, comp
inquiry steps, interim measures and annual reporting.

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FOR	HR TEAM ONLY
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Internal Committee working procedure for compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 and the POSH rules. This is the HR operational companion to the employee-facing POSH handbook.

1. Committee constitution

- Chairperson: a senior woman employee from the workplace unit.
- Two member secretaries with social work / legal-aid experience.
- One employee committed to women's / workplace causes.
- One external member from an NGO or a person familiar with sexual-harassment issues.
- Reconstitution on any vacancy within 90 days; current rosters dated and posted at every office and on the HR portal.

2. Complaint intake

A written complaint (email suffices) reaches any IC member or the IC mailbox. The Act requires the complaint within 3 months of the incident — extensions of up to 3 more months at the IC's recorded discretion. Where the complainant is incapacitated, a relative or colleague may file with consent.

3. First 7 days

- Acknowledge; provide copy of Act + rules on request.
- Assess interim measures: transfer of either party, seating separation, up to 3 months paid leave for the complainant if warranted, restraint on respondent access to complainant's work products.
- Provide the respondent with the complaint and a 10-day reply window.

4. Inquiry

Inquiry concludes within 90 days: statements, evidence, cross-examination where fair, witnesses heard. The Act's conciliation option (only at the complainant's request, before inquiry, no monetary settlement as a term) is recorded verbatim if chosen. Inquiry is quasi-judicial: notes are neutral, verbatim on critical statements, and the record is maintained by the member secretary.

5. Findings and employer action

- Recommendations to employer within 10 days of inquiry close.
- If misconduct proved: action per service rules — warnings to termination, deductions of compensation from the respondent where recommended.
- If unproved / malicious: action against the complainant (and proof bar higher).
- Employer acts on recommendations within 60 days; the IC monitors non-retaliation for 12 months.

6. Annual compliance

Annual report filed with the district officer dated per the Act's deadline drives the annual awareness calendar. Awareness workshops for all employees and induction modules for new joiners are recorded with attendance; the compliance file retains rosters of IC members with the external member's tenure and fees paid.